

## INTRODUCTION

This operating agreement, by and between Caren Braun LLC and Caren Retamar Braun, is effective as of its date of execution.

## DEFINITIONS

Capitalized terms in this instrument shall have the following definitions:

**"Agreement"** means this operating agreement.

**"The Company"** means Caren Braun LLC, a member-managed Minnesota limited liability company.

**"The Member"** means Caren Retamar Braun, an individual national of the Philippines and domiciled in the Philippines, and any entity in which Caren Retamar Braun owns an equity interest of more than fifty percent (50%) or otherwise owns a controlling interest.

**"Party"** means the Company or the Member individually, as the case may be.

**"Parties"** means the Company and the Member collectively.

**"Representative"** means the Member and any person or entity the Member legally authorizes to act on the Company's behalf or to otherwise legally bind the Company.

## BACKGROUND

1. The Member has founded the Company and intends to manage it directly.
2. The Parties intend this Agreement to serve as proof of the Member's ownership of the Company and to memorialize the Parties' understanding regarding the Member's rights and responsibilities with respect to the Company.
3. Therefore, pursuant to consideration whose validity and sufficiency the Parties acknowledge, the Parties agree to the following terms and conditions.

## TERMS AND CONDITIONS

### **Section 1: Formation**

#### Section 1.1: Initial Registration

The Member has formed the Company by causing articles of organization to be filed with the State of Minnesota. These articles establish the Company's initial registered agent.

#### Section 1.2: Additional Registration

Without prejudice to the validity or enforcement of this Agreement, a Representative may:

- a. Change in any way the Company's initial registration under Section 1.1, including the Company's registered agent;
- b. Cause the Company to become registered as a foreign entity in one or more additional jurisdictions; and
- c. Transfer the Company's domicile to a different jurisdiction.

#### Section 1.3: Name and Aliases

Without prejudice to the validity or enforcement of this Agreement, a Representative may:

- a. Change the Company's legal name; and
- b. Create, change, or remove any registrations of aliases and doing-business-as names in any jurisdiction.

#### Section 1.4: No Additional Members

Under this Agreement, the Company shall not admit any additional members, or any member who is not the Member. Any transaction resulting in any third party acquiring a membership interest in the Company, or a lien over the Member's membership interest in the Company, shall be null and void. The addition of any new members shall be governed by a separate, superseding operating agreement, if any.

### **Section 2: Governance**

#### Section 2.1: General Rule

The Member shall govern and control the Company at the Member's discretion. The Parties do not intend for this Agreement to impose upon the Member governance formalities such as

minutes, ledgers, and any other corporate governance structure. The Member need not record any decisions made on the Company's behalf in any form.

### Section 2.2: The Member's Powers and Responsibilities

The Member shall have the power and responsibility to perform the following tasks:

- a. Execute, maintain, and preserve any instruments necessary to properly register the Company in any jurisdictions, and maintain the Company in good status in any such jurisdictions.
- b. Create, maintain, and preserve the Company's accounting records, as to allow the Member to monitor and manage the Company's finances.
- c. Open, alter, and close bank accounts, deposit accounts, and similar financial instruments on the Company's behalf.
- d. Create, execute, and amend legal instruments necessary to effectuate transactions on the Company's behalf.
- e. Set the Company's market strategy, including but not limited to making ultimate decisions on which geographical areas to serve, which products to offer, and which pricing strategies to adopt.
- f. Supervise the Company's acquisition of products from vendors and suppliers in the United States.
- g. Supervise the Company's sale and export of products to buyers in the Philippines.
- h. Supervise the Company's shipment of sold products from the United States to addresses in the Philippines.
- i. Hiring additional officers and managers to take over primary functions, such as vendor relations and logistics in the United States.
- j. Handling all external relations for the Company, such as relations with the Member and its shareholders, government and licensing authorities, and major customers and creditors.

### Section 2.3: Tax Matters

The Company's initial tax election is that of an association taxed as a disregarded entity. A Representative may request a different tax election for the Company as the law allows. Any

transaction which may cause the Company to lose its desired tax election at any given time is null and void.

### **Section 3: Term**

#### Section 3.1: Purpose and Duration

The Company's duration shall be perpetual. The Company may pursue any business purpose the law allows.

#### Section 3.2: Dissolution

The Member may dissolve the Company at any time for any reason. Dissolution shall take effect once a Representative has caused all of the Company's outstanding registrations with one or more jurisdictions to be terminated, and once the Company has met any other requirements for dissolution under applicable law.

### **Section 4: Miscellaneous**

#### Section 4.1: Governing Law

This Agreement shall be governed, construed, and interpreted in accordance with the laws of the State of Minnesota, regardless of conflicts of laws. This Agreement supersedes any default provisions in Minnesota law to the extent applicable law allows.

#### Section 4.2: Jurisdiction and Venue

Any action to interpret or enforce this Agreement shall venue in the United States District Court for the District of Minnesota. The Parties hereby irrevocably and unconditionally consent to that court's personal and subject-matter jurisdiction, and irrevocably and unconditionally waive any constitutional right to a jury trial.

#### Section 4.3: Injunctive and Equitable Relief

Each Party agrees that a breach of this Agreement would cause irreparable harm and significant injury to the other Party. The Parties also agree that any such harm and injury would be difficult to value or compensate in terms of monetary damages. Therefore, each Party agrees that the other Party has the right to enforce this Agreement by injunction, specific performance, and other equitable remedies without needing to show proof of actual harm.

#### Section 4.4: Severability

If any portion of this Agreement is deemed invalid or unenforceable for any reason, that portion shall be severed – and the remainder of this Agreement shall remain in effect and in full force.

Section 4.5: Counterparts

This Agreement may be executed in counterparts, with the sum of all counterparts constituting the entire, original instrument.

Section 4.6: Entirety and Amendments

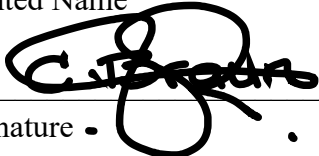
This Agreement contains the entire arrangement of the Parties concerning its subject matter. It supersedes any prior or simultaneous oral or written arrangement between the parties on this subject matter. This Agreement can only be amended or superseded through a written instrument signed by both Parties.

SIGNATURES

**On behalf of the Member,  
Caren Retamar Braun**

Caren Retamar Braun

Printed Name

Signature 

December 7, 2025

Date

**On behalf of the Company,  
Caren Retamar Braun**

Caren Retamar Braun

Printed Name

Signature 

December 7, 2025

Date